

23AHCV01983 23AHCV01983

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F21%2F2026

Source SHA-256: 17917cd569b7b6a82e4b125b0352bd44db419d653688c6303a829ceb096bc86b

Case Number: 23AHCV01983 Hearing Date: August 21, 2026 Dept: P

[TENTATIVE] ORDER DENYING CROSS-DEFENDANT MD STEEL INC.'S MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION

I. INTRODUCTION

Plaintiff David Carrazco sustained injury from electric shock on October 26, 2022, at 3801 East Foothill Boulevard, Pasadena, CA 91107. Plaintiff was performing work on an elevator pit when the injury occurred. Plaintiff was holding a chain that came in contact with a live, exposed wire in the elevator pit. Plaintiff alleges his injuries were the result of Defendants Swanson & Dudley, Inc. ("Swanson") and Parkway Construction GP, LLC's ("Parkway") negligence. On August 29, 2023, Plaintiff filed a complaint against Swanson and Parkway alleging a single cause of action for negligence.

On November 22, 2023, Parkway filed a Cross-Complaint for negligence, equitable indemnity, express indemnity, implied indemnity, apportionment of fault, and declaratory relief. On December 4, 2023, Parkway filed an amendment to the Cross-Complaint naming MD Steel, Inc. ("MD Steel") as a cross-defendant.

On May 19, 2026, MD Steel filed the instant motion for summary judgment, or alternatively, summary adjudication. Parkway filed an opposition on July 31, 2026, and MD Steel filed a reply on August 10, 2026.

Request for judicial notice

MD Steel requests judicial notice of the following: (1) Plaintiff's Complaint, filed August 29, 2023; (2) Parkway's Cross-Complaint, filed November 22, 2023; and (3) Parkway's Amendment to the Cross-Complaint, filed December 4, 2023.

The Court GRANTS MD Steel's request for judicial notice pursuant to Evidence Code section 452, subdivision (d), as to the existence and contents of these court records.

Evidentiary objections

Objections Nos. 1-6 OVERRULED.

II. LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

III. ANALYSIS

MD Steel moves for summary judgment, or alternatively summary adjudication, as to three issues: (1) Parkway’s cause of action for express indemnity; (2) Parkway’s cause of action for apportionment of fault; and (3) Parkway’s cause of action for declaratory relief. MD Steel contends each claim fails because it did not cause, create, or control the energized electrical condition that allegedly injured Plaintiff and therefore cannot be found at fault for the underlying incident. (Notice, p. 2.)

MD Steel seeks summary judgment on Parkway’s Cross-Complaint on the grounds that it bears no responsibility for Plaintiff’s injuries. MD Steel argues that its scope of work was limited to metal work, including structural steel, decking, handrails, and screen walls, and did not include electrical work. (UMF No. 1.) Before MD Steel began its work, its project manager, Mike Duran, observed the exposed conduit in the pit and raised the issue with Parkway’s superintendent, Victor Williams. According to MD Steel, Williams represented that the conduit had been “safed off” and that the area was clear for MD Steel’s employees to begin work. (DMF No. 2.)

MD Steel further presents evidence that neither Plaintiff nor the two other MD Steel employees working with him entered the electrical room containing the breaker for the energized wire. (UMF Nos. 5-7.) MD Steel therefore contends that it was in no way responsible for deactivating the electricity that allegedly caused the harm to Plaintiff. Specifically, it did not energize, control, or otherwise cause the electrical condition that resulted in Plaintiff’s injuries and cannot be held liable for Parkway’s claims for indemnity, apportionment of fault, or declaratory relief. (MSJ, pp.6-10.)

The burden therefore shifts to Parkway to demonstrate a triable issue of material fact as to whether MD Steel’s conduct contributed to Plaintiff’s injuries and provides a basis for liability under Parkway’s Cross-Complaint.

In opposition, Parkway argues that MD Steel’s lack of control over the electrical system does not establish that MD Steel was free from fault. Parkway contends that MD Steel had an obligation to ensure a safe work environment for its employees and designated Duran as its “competent person,” with the necessary training or experience to comply with OSHA safety standards, and who would take on personal liability for any accidents that happen. (SSAUMF, No.1.) Parkway argues that, despite Duran’s knowledge of the exposed wires, MD Steel presents no evidence that it verified the circuit was deenergized before permitting Plaintiff to work in the pit. (Opposition, pp. 5-6.)

Parkway also disputes MD Steel's characterization of Duran's conversation with Williams. According to Parkway, Duran's complete deposition testimony reflects that Williams stated additional work by the demolition and abatement crews remained to be completed before the area would be clear for MD Steel to begin its work. (Id. at p. 6.) Parkway further notes that this conversation occurred several days before the incident and contends MD Steel presents no evidence that it subsequently verified the area was safe before allowing its employees to begin work. (Id. at pp. 6-7.)

Thus, Parkway contends a triable issue exists as to whether MD Steel contributed to Plaintiff's injuries by permitting him to work near a known electrical hazard without first verifying that the circuit had been deenergized. (Id.)

The Court finds Parkway has raised a triable issue of material fact as to whether MD Steel's conduct contributed to Plaintiff's injuries. MD Steel's motion rests principally on the contention that it did not create, energize, or control the electrical condition that caused Plaintiff's injury. However, the absence of evidence that MD Steel created the electrical hazard does not necessarily establish that MD Steel was free from negligence.

The evidence reflects that MD Steel's project manager, Mike Duran, observed the exposed conduit before MD Steel began its work and raised the condition with Parkway's superintendent, Victor Williams. (DMF No. 2.) Although MD Steel contends Williams advised Duran that the conduit had been "safed off" and was clear for Plaintiff and his coworkers to begin work, Parkway disputes this characterization. (DMF Nos. 2, 4.) Parkway points to Duran's testimony that Williams stated the demolition crew still had work to complete and the abatement team still needed to clean the pit, "and then" the area would be clear for MD Steel to begin its work. (DMF Nos. 2, 4.)

Parkway further presents evidence that this conversation occurred several days before the incident and that MD Steel did not take steps on the day of the incident to verify that the pit was safe before permitting its employees to work there. (DMF Nos. 2, 4.)

Thus, even if MD Steel did not create or control the energized electrical condition, the evidence raises a triable issue as to whether MD Steel was negligent in permitting its employees to work in the pit without first verifying that the known electrical hazard had been rendered safe as of the date of Plaintiff's injury. MD Steel's contention that it did not create or energize the electrical condition does not dispose of Parkway's theory that MD Steel's own conduct contributed to Plaintiff's injuries.

Because Parkway has raised a triable issue as to whether MD Steel's own conduct contributed to Plaintiff's injuries, the Court cannot conclude, as a matter of law, that MD Steel bears no fault for the incident. That same factual dispute precludes summary adjudication of Parkway's express indemnity and apportionment claims, because the Court cannot determine on this record that Parkway's indemnity claim is barred or that no fault may be allocated to MD Steel. And because those issues remain unresolved, an actual controversy remains as to the parties' respective rights and obligations. Therefore, MD Steel has not established that Parkway's claims for express indemnity, apportionment of fault, and declaratory relief fail as a matter of law. The motion for summary judgment, or in the alternative summary adjudication, is DENIED.

IV. CONCLUSION & ORDER

The Court DENIES MD Steel's motion for summary judgment, or in the alternative, summary adjudication.

MD Steel is to give notice.

Dated: August 21, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT